Accordingly, Defendant's request for attorneys' fees and costs is **denied**.

Summary and Conclusion

Defendant's motion to strike is **denied** as to the following statements:

- "He does not comply with the terms of the contract, and without notifying the client, he deducts money."
- "He does not follow the terms of his own contract, withdraws money without permission…."
- "He continued to withdraw money even after being terminated in order to avoid refunding the client."
- "He also charges twice for services that have already been provided – this is fraud."
- "To date, of the $11,000 paid, nothing has been refunded."
- "After a few months, Romanenko refused to continue handling the asylum case unless the fee was increased by $2,000, citing the following justification: 'Our signed contract says nothing about fixing the price for the future,' and the contract stated $10,000."
- "Romanenko did not request or work with evidence," and
- "You did nothing to secure the scheduling of my individual hearing."

Defendant's motion is granted as to the following statements:

- "… and for $500 per hour made many mistakes in the documents,"
- "He claims that he personally prepares the paperwork, but in reality it is done by incompetent staff in his office."
- "… you are lying and deceiving people."

Defendant's motion is also **granted** as to any other statements/quotations contained in the Complaint which were not specifically addressed by Plaintiff in his opposition, to the extent he claims they were defamatory. In other words, Plaintiff's case may proceed only based on the eight statements listed above wherein the court denied Defendant's Motion to Strike.

Defendant's request for attorney's fees and costs is **denied**.

9. 9:00 AM CASE NUMBER: C26-00255
CASE NAME: DANIEL HOGAN VS. GENERAL MOTORS, LLC
RE 1ST AMENDED COMPLAINT
FILED BY: GENERAL MOTORS, LLC
****TENTATIVE RULING:****

Defendant General Motors LLC ("Defendant") brings this demurrer to the First Amended Complaint ("FAC") of plaintiff Daniel Hogan ("Plaintiff"). Defendant challenges Plaintiff's third cause of action for fraudulent concealment and fourth cause of action for violation of the Consumers Legal Remedies Act ("CLRA").

For the reasons discussed below, the Court **OVERRULES** Defendant's demurrer to the third and fourth causes of action in Plaintiff's First Amended Complaint.

Meet and Confer

The meet and confer requirement has been satisfied. (Ryan Kay Decl., ¶ 2; Code Civ. Proc., § 430.41, subd. (a)(3)(A).)

Legal Standard for Demurrer

In ruling on a demurrer, a court must treat as true all properly pleaded material facts contained in the complaint, but not contentions, deductions or conclusions of fact or law. (*Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) "We also accept as true facts which may be inferred from those expressly alleged." (*Cundiff v. GTE Cal., Inc*. (2002) 101 Cal.App.4th 1395, 1405.) A demurrer challenges "the sufficiency of the allegations in a complaint as a matter of law," not the truth of the factual allegations in the pleading or the pleader's ability to prove those allegations. (*Id.,* at pp. 1404-1405.)

Questions of fact cannot be decided on demurrer. (*Berryman v. Merit Prop. Mgmt., Inc*. (2007) 152 Cal.App.4th 1544, 1556.) Because a demurrer tests only the sufficiency of the complaint, a "court will not consider facts which have not been alleged in the complaint unless they may be reasonably inferred from the matters which have been pled or are proper subjects of judicial notice." (*Hall v. Great W. Bank* (1991) 231 Cal.App.3d 713, 718, fn.7.) "[A]t the demurrer stage the complaint must be construed in the light most favorable to the plaintiff." (*Wilson v. Houston Funeral Home* (1996) 42 Cal.App.4th 1124, 1138.)

In ruling upon demurrers, courts treat as being true "not only the complaint's material factual allegations, but also facts that may be implied or inferred from those expressly alleged." (*Poseidon Development, Inc. v. Woodland Lane Estates* (2007) LLC, 152 Cal.App.4th 1106, 1111-1112.) "Liberality in permitting amendment is the rule, if a fair opportunity to correct any defect has not been given." (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227.) "However, leave to amend should not be granted where, in all probability, amendment would be futile." (*Foroudi v. The Aerospace Corp.* (2020) 57 Cal.App.5th 992, 1000 [citations and internal quotes omitted].)

Background: Facts Alleged in FAC

Plaintiff filed this action on January 23, 2026, and filed the first amended complaint ("FAC") on February 24, 2026. (FAC, p. 1.) The FAC alleges claims against Defendant for: (1) breach of implied warranty of merchantability under the Song-Beverly Act; (2) breach of express warranty under the Song-Beverly Act; (3) fraudulent concealment; and (4) violation of Civil Code section 1750 et seq., Consumers Legal Remedies Act ("CLRA").

On August 15, 2022, Plaintiff purchased a new 2022 Chevrolet Silverado from Concord Chevrolet for personal, family, or household purposes. (FAC, ¶¶ 5, 7.) The vehicle came with a warranty. (*Id*. at ¶ 9.) Plaintiff took the vehicle to Defendant's authorized service and repair facilities on multiple occasions to address nonconformities. (*Id*. at ¶ 11.) Each time, Defendant's authorized service and repair facility represented that they conformed the vehicle to the warranties and that the defects, malfunctions and nonconformities had been repaired. (*Id*. at ¶ 13.) The engine sold with Plaintiff's vehicle was defective and Defendant knew that kind of engine was defective since early 2018. (*Id*. at ¶ 18.) The defects are caused by issues with the fuel system, emissions system, cooling system or internal rotating components, which lead to a sudden loss of power, stalling, or other impairments while the vehicle is in operation. (*Id*. at ¶ 29.)

Between March 9, 2023, and February 5, 2026, Plaintiff took the vehicle in for repairs on eight separate occasions and despite Defendant's attempts to fix it, the vehicle continues to experience the same dangerous and persistent issues caused by a defective engine. (FAC, ¶ 42.) At the time of the vehicle sale, Defendant knew that the vehicle was equipped with a defective engine yet failed to inform Plaintiff of this. (*Id*. at ¶ 43.) Had Plaintiff been advised of the defective engine he would not have purchased it or would have paid significantly less. (*Id*. at ¶ 44.)

Plaintiff seeks replacement or restitution, incidental damages, punitive damages, injunctive relief, attorney fees, costs of suit, the difference in value of the vehicle as accepted and the value the vehicle could have had if it had been as warranted, remedies provided in Chapters 6 and 7 of Division 2 of the Commercial Code, and prejudgment interest. (FAC, p. 43.)

<u>Discussion</u>

<u>Statute of Limitations</u>

Defendant argues that Plaintiff's fraudulent concealment and CLRA claims are barred by the three-year statute of limitations. (Demurrer MPA, pp. 8-9, citing Code of Civ. Proc., § 338, subd. (d) and Civ. Code, § 1783.) He argues that Plaintiff purchased the vehicle on August 12, 2022, and did not file the lawsuit until January 2026, which is too late. (Demurrer MPA, p. 8.) Plaintiff argues that these claims are not barred by the statutes of limitation and that it is not proper to assert that he knew of the defective engine on the date of purchase because that goes against the specific allegation from the FAC that he would not have purchased the vehicle had he known of the defect. (Opposition, pp. 1-4; FAC, ¶¶ 32-33.) Defendant argues on reply that Plaintiff has failed to properly plead the discovery rule and that the Court should sustain the demurrer to the third and fourth causes of action without leave to amend. (Reply, pp. 2-3.)

The Court finds Defendant's argument about the statue of limitations unavailing.

It is well established that "statutes of limitation do not begin to run until a cause of action accrues." (*Fox v. Ethicon Endo-Surgery, Inc*. (2005) 35 Cal.4th 797, 807, citing *Romano v. Rockwell International, Inc*. (1996) 14 Cal.4th 479, 487.) "Traditionally at common law, a cause of action accrues when [it] is complete with all of its elements—those elements being wrongdoing, harm, and causation. . . . This is the 'last element' accrual rule: ordinarily, the statute of limitations runs from the occurrence of the last element essential to the cause of action." (*Aryeh v. Canon Business Solutions, Inc*. (2013) 55 Cal.4th 1185, 1191.)

Here, Plaintiff did not need to take the vehicle into the shop until March 9, 2023, which was the vehicle's first visit to the service center, and it is thus inferable that there were no problems with the vehicle prior to that date. (FAC, ¶¶ 34, 42.) It is not reasonable to expect Plaintiff to have learned of the defective engine prior to the vehicle exhibiting its first problem that caused it to need to be taken into the shop and it is further so that no cause of action accrued prior to that date. March 9, 2023, is less than three years prior to this case being filed on January 23, 2026.

The Court will overrule Defendant's demurrer to the third and fourth causes of action based on the statute of limitations.

<u>Fraudulent Concealment</u>

Lack of Specificity

Defendant argues that Plaintiff has not pled the fraudulent concealment claim with sufficient specificity and identifies the five *Rattagan v. Uber Technologies, Inc*. (2024) 17 Cal.5th 1, 43-44, elements that must be satisfied to state a claim for fraudulent concealment with the proper specificity. (Demurrer MPA, pp. 9-10.) Defendant cites *Tenzer v. Superscope, Inc.* (1985) 39 Cal.3d 18, 30, to support an argument that Plaintiff was required to plead intent to defraud with specificity. (Demurrer MPA, p. 10.) Plaintiff argues that the fraudulent concealment claim is sufficiently pled and cites the supporting paragraphs. (Opposition, pp. 4-7.) Plaintiff further distinguishes *Tenzer* as not dealing with fraudulent concealment and argues how it actually supports his fraudulent concealment claim. (*Id*. at p. 7.) Defendant argues on reply that Plaintiff failed to plead the specific facts that Defendant allegedly failed to disclose and also points out that the aggregated data Plaintiff cites and describes as TSBs, NHTSA complaints and the like is not specifically pleaded because it includes information from other vehicles. (Reply, pp. 3-5.)

[FOOTNOTE: The Court notes that the parties refer to the vehicle at issue as an Escalade in the reply, despite the vehicle at issue being alleged in the FAC to be a 2022 Chevrolet Silverado. (Reply, pp. 5, 9; FAC, ¶ 5.)]

With respect to how to plead a fraudulent concealment claim with the requisite specificity, the California Supreme Court has provided the following guidance:

> California courts apply the same specificity standard to evaluate the factual underpinnings of a fraudulent concealment claim at the pleading stage, even though the focus of inquiry shifts to the unique elements of the claim. [Citations.] . . . . If the duty allegedly arose by virtue of the parties' relationship and the defendant's exclusive knowledge or access to certain facts . . . the complaint must also include specific allegations establishing all the required elements, including (1) the content of the omitted facts, (2) the defendant's awareness of the materiality of those facts, (3) the inaccessibility of the facts to the plaintiff, (4) the general point at which the omitted facts should or could have been revealed, and (5) justifiable and actual reliance, either through action or forbearance, based on the defendant's omission.

(*Rattagan v. Uber Technologies, Inc*. (2024) 17 Cal.5th 1, 43-44.)

Here, regarding element one, the content of the omitted facts, paragraph 36 describes that the defective engine was preventing the smog sensors from resetting. (FAC, ¶ 36.) The Court finds Plaintiff's allegations as to element one sufficient for pleading purposes. Regarding element two, the defendant's awareness of the materiality of those facts, paragraph 79 alleges that "Defendant failed to provide notice of the Defective Engine in vehicle sales materials distributed by Defendant to customers, knowing full well that the defect was unrepairable and posed safety risks to Plaintiff." (FAC, ¶ 79.) The Court finds Plaintiff's allegations as to element two sufficient for pleading purposes. Regarding element three, the inaccessibility of the facts to the plaintiff, paragraph 68 alleges that "Defendant has superior knowledge of the Defective Engine because it has access to information (and can interpret information) that average, reasonable consumers, like Plaintiff, do not. None of this information is available to average, reasonable consumers like Plaintiff, nor did Defendant publicly or privately disclose any of this information to Plaintiff." (FAC, ¶ 68.) The Court finds Plaintiff's allegations as to element three sufficient for pleading purposes.

Regarding element four, the general point at which the omitted facts should or could have been revealed, paragraph 74 alleges that this should have happened prior to Plaintiff's purchase of the vehicle, or during his research, test drive, or sales process, or at the least at any pint the vehicle was presented to Defendant for repair. (FAC, ¶ 74.) The Court finds Plaintiff's allegations as to element four sufficient for pleading purposes. Regarding element five, justifiable and actual reliance, either through action or forbearance, based on the defendant's omission, paragraphs 32 and 33 allege that:

> At no time was Plaintiff told or made aware, either publicly or privately, that the Vehicle was equipped with the Defective Engine and had the problems associated therewith. These omissions were material to Plaintiff's decision to purchase the Vehicle. Had Defendants and/or their authorized agents publicly or privately disclosed the Defective Engine before Plaintiff purchased the Vehicle, Plaintiff would have been aware of such disclosures and would not have purchased the Vehicle.

(FAC, ¶¶ 32-33.)

The Court finds Plaintiff's allegations as to element five sufficient for pleading purposes. Plaintiff has properly pleaded his fraudulent concealment claim with the requisite specificity.

With respect to Defendant's argument that Plaintiff has not pled an intent to defraud, these allegations are found at paragraphs 21 and 117. (FAC, ¶¶ 21 ["Defendants' acts were done maliciously, oppressively, deliberately, with intent to defraud, and in reckless disregard of Plaintiffs rights and well-being, in part to enrich themselves at the expense of consumers."]; 117 ["Defendants intentionally concealed material information regarding the Defective Engine to drive up sales and maintain their market power. Defendants' acts were done maliciously, oppressively, deliberately, with intent to defraud, and in reckless disregard of Plaintiffs rights and well-being. Defendants' acts were perpetrated, authorized, or knowingly ratified by an officer, director, or managing agent, were done to enrich themselves at the expense of consumers, gain commercial advantage over competitors, and to drive consumers away from consideration of competitor's vehicles."].)

Lack of a Transactional Relationship

Defendant argues that Plaintiff's fraudulent concealment claim fails because Plaintiff does not allege a transactional relationship between himself and Defendant that would give rise to a duty to disclose.

(Demurrer MPA, pp. 10-12.) This is because Plaintiff does not allege that he purchased the vehicle directly from Defendant. (*Id*. at p. 12.) He cites to *Antonov v. General Motors LLC* (C.D. Cal. Jan. 19, 2024) No. 8:23-cv-01593-FWS-MJR, 2024 WL 217825, and *Bigler-Engler v. Breg, Inc*. (2017) 7 Cal.App.5th 276 in support of this argument. (*Id*. at pp. 11-12.)

Plaintiff argues that a transactional relationship between him and Defendant is indeed alleged and that Defendant had a duty to disclose in this case. (Opposition, pp. 7-12.) This is because the court in *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828, has already rejected the same argument that Defendant makes here. (Opposition, p. 8.) Plaintiff further argues that *Bigler-Engler v. Breg, Inc*. (2017) 7 Cal.App.5th 276, provides further support for his position and that *Rattagan* did not address this issue. (Opposition, pp. 8-11.) Plaintiff finally contends that *Antonov v. General Motors LLC* (C.D. Cal. Jan. 19, 2024) No. 8:23-cv-01593-FWS-MJR, 2024 WL 217825, is an unpublished non-binding federal case that does not reflect the law in California. (Opposition, pp. 11-12.)

On reply, Defendant reasserts that the *Bigler-Engler* case requires a preexisting relationship between the parties and that *Dhital* is inconsistent with *Rattagan*, which requires more. (Reply, pp. 5-6.) Defendant also argues that conclusory allegations of the dealer being an agent are insufficient. (*Id*. at p. 6.)

Here, the Court finds *Dhital v. Nissan North America, Inc*. (2022) 84 Cal.App.5th 828, expressly on point as to the position of the parties and the procedural posture of the case. *Rattagan* was a very limited decision that was in response to a question posed by the United States Court of Appeal for the Ninth Circuit, and answered the question of whether, "[u]nder California law, may a plaintiff assert a tort claim for fraudulent concealment arising from or related to the performance of a contract? The answer to the question is a qualified yes." (*Rattagan v. Uber Technologies, Inc*. (2024) 17 Cal.5th 1, 13.) *Rattagan* further does not address in any way the issue asserted here by Defendant regarding the lack of a transactional relationship. *Bigler-Engler v. Breg, Inc*. (2017) 7 Cal.App.5th 276, 284, was decided after a jury trial.

In *Dhital*, the Court of Appeal provided the following guidance on the issue before this Court:

> In its short argument on this point in its appellate brief, Nissan argues plaintiffs did not adequately plead the existence of a buyer-seller relationship between the parties, because plaintiffs bought the car from a Nissan dealership (not from Nissan itself). At the pleading stage (and in the absence of a more developed argument by Nissan on this point), we conclude plaintiffs' allegations are sufficient. Plaintiffs alleged that they bought the car from a Nissan dealership, that Nissan backed the car with an express warranty, and that Nissan's authorized dealerships are its agents for purposes of the sale of Nissan vehicles to consumers. In light of these allegations, we decline to hold plaintiffs' claim is barred on the ground there was no relationship requiring Nissan to disclose known defects.

(*Dhital v. Nissan North America, Inc*. (2022) 84 Cal.App.5th 828, 844.)

Here, this case is similarly in the pleading stage, and Plaintiff has alleged that he bought the car from a Chevrolet dealership, that Chevrolet provided the warranty for the vehicle, and that Chevrolet's authorized dealerships are Defendant's sales agents and that Concord Chevrolet is officially certified to sell Chevrolet vehicles. (FAC, ¶¶ 5, 6, 8, 9, 85.) The FAC alleges that Plaintiff and Defendant are in a warrantor/warrantee relationship that Plaintiff purchased along with the vehicle. (*Id*. at ¶¶ 8-9.) *Dhital v. Nissan North America, Inc*. is binding authority on this Court and it is essentially the exact same fact pattern as alleged here by Plaintiff. The California Supreme Court denied a request for depublication as to *Dhital* and despite granting a petition for review on the topic of whether claims for fraudulent concealment are exempted from the economic loss rule, the petition for review was dismissed with no modifications to the *Dhital* opinion. (*Dhital v. Nissan North America, Inc*. (2023) 304 Cal.Rptr.3d 82, 83 ["The request for an order directing depublication of the opinion is denied."]; *Dhital v. Nissan North America, Inc.* (2024) 327 Cal.Rptr.3d 898.)

The Court will overrule Defendant's demurrer to Plaintiff's third cause of action for fraudulent concealment.

<u>CLRA</u>

Defendant argues that Plaintiff failed to provide the adequate notice required to properly plead a CLRA violation and that this claim fails because Plaintiff failed to plead fraud with the required specificity. (Demurrer MPA, pp. 12-16.) Defendant argues that Plaintiff failed to provide thirty or more days' notice as required by Civil Code section 1782, because Plaintiff alleges in the FAC that the notice was sent on the same day as the filing of the Complaint in this matter. (*Id*. at p. 13.) Defendant cites the general rule that statutory causes of action should be pled with particularity. (*Id*. at p. 15.)

Plaintiff argues that this practice has been specifically approved in *Morgan v AT&T Wireless Services Inc*. (2009) 177 Cal.App.4th 1235, which rejected any argument that the CLRA notice must be sent before commencement of a lawsuit, explaining such an argument "is contrary to the express language of the notice statute." (*Id*. at p. 1260; Opposition pp. 12-13.) The court affirmed that notice is not required if a plaintiff is not seeking damages under the CLRA; the "statute contemplates" that a consumer may amend a complaint to add a request for damages, which is expressly allowed. (*Id*.) Plaintiff asserts this is what he did here. (Opposition p. 13.) Plaintiff served the notice on January 23, 2026, by certified mail, the same day the lawsuit was filed, and then he filed the FAC which added a request for damages on February 24, 2026, a month after the CLRA notice was set to Defendant. (Opposition, p. 13, FAC, ¶ 146.)

Plaintiff also cites Civil Code section 1760 as providing that the CLRA asserts that its provisions "shall be liberally construed and applied to promote its underlying purposes, which are to protect consumers against unfair and deceptive business practices and to provide efficient and economical procedures to secure such protection." (Opposition, p. 13.) Plaintiff points out that Defendant mistakenly argues that a heightened pleading standard applies to CLRA claims, similar to that of common law fraud claims, but this is not so. (*Ibid*.)

On reply, Defendant argues that Plaintiff only pleaded conclusions of law without supporting facts and did not identify any representation made by Defendant about the vehicle prior to the purchase date. (Reply, p. 8.) The representations cited by Plaintiff are classic sales talk and general puffery that is considered opinion. (*Id*. at pp. 8-9.)

Here, the Court finds that Plaintiff properly provided notice based on the fact that it only sought injunctive relief for its CLRA claim in the original complaint filed on January 23, 2026. (Complaint, ¶¶ 142-152.) Upon the filing of the FAC on February 24, 2026, after 30 days, Plaintiff updated the CLRA claim to include a request for damages. (FAC, ¶¶ 143-153.) This practice was approved in *Morgan v. AT&T Wireless Services, Inc*. (2009) 177 Cal.App.4th 1235, 1260-1261.)

Regarding Defendant's argument that the fraud claim supporting the CLRA claim is insufficiently pled because it lacks specificity, the Court disagrees. "These deceptive practices proscribed in the CLRA include the concealment or suppression of material facts. [Citations.] This is because fraud or deceit encompasses the suppression of a fact by one who is bound to disclose it, or the suppression of a fact that is contrary to a representation that was made." (*Collins v. eMachines, Inc*. (2011) 202 Cal.App.4th 249, 255.) Here, because Plaintiff has properly stated a claim for fraudulent concealment, which contains a heightened pleading requirement, the Court finds that the same allegations support his CLRA claim.

Ruling

Based on the analysis above, the Court **OVERRULES** Defendant's demurrer to the third and fourth causes of action in Plaintiff's First Amended Complaint. Defendant must file its Answer or other responsive pleading within 15 days of service of notice of entry of this order.

10. 9:00 AM CASE NUMBER: C26-00255
CASE NAME: DANIEL HOGAN VS. GENERAL MOTORS, LLC
STRIKE PUNITIVE DAMAGES RE 1ST AMENDED COMPLAINT
FILED BY: GENERAL MOTORS, LLC
TENTATIVE RULING:

Defendant General Motors LLC ("Defendant") brings this motion to strike punitive damages ("Motion") from the First Amended Complaint ("FAC") of plaintiff Daniel Hogan ("Plaintiff").

For the reasons discussed below, the Court **DENIES** Defendant's Motion.

Meet and Confer

The meet and confer requirement has been satisfied. (Ryan Kay Decl., ¶ 2; Code Civ. Proc., § 435.5, subd. (a)(3)(A).)

Legal Standard

"The court ***may***, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court." (Code Civ. Proc., § 436, subds. (a), (b), emphasis added.)

Like a demurrer, the grounds for a motion to strike must appear on the face of the pleading or be